Terms and Conditions

Purpose: protect the software's creators and set the limits of their liability.

1. Introduction and Definitions

These Terms and Conditions govern access to and use of Elevate, the web platform that supports the registration, periodic inspection and follow-up of elevators in the municipality of Aveiro. They apply to every person who uses the Platform, whatever their role.

In these Terms, the following expressions have the meaning given below.

Term	**Meaning**
Platform	The Elevate web application, including its user interface, back end and file storage.
Creators	The team that designed and developed the Platform.
CMA	Câmara Municipal de Aveiro (the Municipality), which oversees elevators in its area.
User	Any person holding an account on the Platform.
Owner	The owner of an elevator, who requests inspections and follows their outcome.
Maintenance Company	The company responsible for maintaining an elevator. It registers elevators and complaints.
Inspection Company	The entity that schedules inspections and submits their results and reports.
CMA Staff	Municipal staff who approve registrations, including the Urban Planning Sector staff who log building notices, and who follow each case.
Elevator Register	The municipal register of elevators, which the Platform feeds.
Content	Any data, document, report or certificate that a User enters or uploads.

2. Acceptance and Eligibility

2.1. By creating an account, logging in or otherwise using the Platform, the User declares that they have read, understood and accepted these Terms.

2.2. Accounts are personal. Each account only has access to the features and elevators linked to its role.

2.3. Owners authenticate through Autenticação.gov (Citizen Card or Digital Mobile Key), via the Platform's authentication service. The Platform receives only the attributes the Owner authorizes, namely name and tax number.

2.4. A User who does not accept these Terms must not use the Platform.

3. User Roles and Permitted Use

3.1. Each User may use only the features and the elevators linked to their own account. The permitted use of each role is set out below.

Role	Permitted use
Owner	Receives notifications, requests inspections and re-inspections, and follows the history of their elevators.
Maintenance Company	Registers elevators and complaints, attaches maintenance contracts and records corrections.
Inspection Company	Schedules inspections and submits results, certificate validity dates and reports.
CMA Staff	Approves registrations, logs building notices, follows pending and overdue cases and oversees the Elevator Register.

3.2. The Platform is provided for the management of elevator registration and inspection. Any other use requires the prior authorization of the CMA.

4. Prohibited Conduct

The Platform feeds the municipal Elevator Register and supports decisions about people's safety. For that reason, Users must not:

- enter false data or upload altered reports, certificates or documents;
- share login credentials or access the data of other Users;
- attempt to bypass access control or any other security measure;
- overload, disrupt or interfere with the operation of the Platform.

A breach of this section may lead to the suspension of the account under section 9.

5. User Responsibilities and Accuracy of Data

5.1. Each User is solely responsible for the accuracy, completeness and lawfulness of the Content they submit.

5.2. The Creators do not verify the technical content of reports, certificates or any data entered by Users.

5.3. Users must keep their credentials confidential and inform the CMA without delay of any suspected unauthorized access to their account.

6. Notifications and Reminders

6.1. The Platform sends reminders and alerts, such as the notice issued 60 days before an inspection deadline, as a convenience to Users.

6.2. These notifications are an aid only. They do not replace the legal obligations of Owners and Maintenance Companies under Decreto-Lei n.º 320/2002, nor the official notices of the Municipality.

6.3. The absence, delay or failure of a notification does not release the User from any legal obligation or deadline.

7. Disclaimers and Limitation of Liability

7.1. The Platform is provided “as is” and “as available”, without warranty of any kind.

7.2. To the extent permitted by law, the Creators are not liable for losses caused by failures, downtime or loss of data.

7.3. The Creators are not liable for the consequences of inaccurate or false Content submitted by Users, nor for any decision taken on the basis of that Content.

7.4. The Creators are not liable for an inspection becoming overdue, or an elevator remaining in service, as a result of a missing, delayed or incorrect notification. Responsibility for compliance with the inspection and maintenance rules remains with the Owners, the Maintenance Companies and the Inspection Companies.

7.5. Nothing in these Terms excludes liability that cannot be excluded under Portuguese law.

8. Fees, Payments and Refunds

8.1. The Platform is free for Users.

8.2. The Platform does not process payments. Inspection fees are paid to the Municipality outside the Platform, under the applicable municipal regulation, using a payment reference that is generated and paid in MyNet (MyDoc WIN), the CMA’s document management system.

8.3. As no amount is charged by the Platform, refunds do not apply. Any question about an inspection fee must be addressed to the Municipality.

9. Suspension, Account Cancellation and Retention of Records

9.1. Users may ask for their account to be closed at any time.

9.2. The CMA may suspend or close an account that breaches these Terms, in particular sections 4 and 5.

9.3. Elevator history and inspection records are part of the CMA’s archive. They are kept for as long as the law requires and are not deleted when an account is closed, so that the history of each elevator remains complete. In that case, the name of the User is replaced by “Removed user”.

9.4. Account data (email, phone and password) is deleted automatically 12 months after the account is deactivated, and access logs are deleted automatically after 12 months.

9.5. Closing an account does not release the User from obligations incurred before the closure.

10. Personal Data Protection

10.1. The Municipality of Aveiro is the data controller. The Platform processes personal data in accordance with Regulamento (UE) 2016/679 (RGPD) and Lei n.º 58/2019, which ensures its execution in Portugal.

10.2. Personal data is processed because the CMA is legally required to oversee the elevators in its area (RGPD, artigo 6.º, n.º 1, alíneas c) e e), and Decreto-Lei n.º 320/2002). For that reason, the consent of the data subject is not required.

10.3. Personal data is used only for the purposes of registering, inspecting and following up elevators, and for operating the Platform. For Owners who authenticate through Autenticação.gov, the Platform receives only the attributes they authorize (name and tax number).

10.4. Users may exercise the rights granted by the RGPD, including access, rectification and erasure, through the Platform or by contacting the CMA's Data Protection Officer, who replies within 30 days. Erasure is subject to the retention of records described in section 9.

10.5. Users must not enter personal data that is not necessary for the purposes described above.

11. Intellectual Property and Third-Party Licences

11.1. The Platform is built on open-source components released under permissive licences (MIT, Apache-2.0, BSD-2-Clause and the PostgreSQL License). Each component remains subject to the terms of its own licence.

11.2. The Platform integrates with MyDoc WIN, a proprietary document management system supplied by AIRC and used by the CMA. That system is not part of the Platform, remains the property of its owner and is governed by its own terms.

11.3. Content submitted by Users remains the responsibility of the User who submitted it. By submitting it, the User allows its use by the Platform and by the CMA for the purposes described in these Terms.

12. Changes to the Terms

12.1. These Terms may be changed, namely to reflect changes in the law or new features of the Platform.

12.2. Users are notified by email or by a notice on the Platform at least 15 days before the changes take effect.

12.3. Significant changes must be accepted again at the next login. The accepted version and the date of acceptance are recorded.

12.4. Continuing to use the Platform after the changes take effect counts as acceptance of the new version.

13. Governing Law and Jurisdiction

13.1. These Terms are governed by Portuguese law, in particular Decreto-Lei n.º 320/2002 (maintenance and inspection of elevators) and the RGPD, together with Lei n.º 58/2019.

13.2. The courts of the district of Aveiro have jurisdiction to settle any dispute arising from these Terms, without prejudice to any mandatory rules of law.

13.3. Questions about these Terms may be sent to the CMA. Requests concerning personal data may be sent to the CMA's Data Protection Officer at protecao-de-dados@cm-aveiro.pt.